SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NO.	Pg. 1 of 59

2. CONTRACT NO.	3. AWARD/EFFECTIVE DATE	4. ORDER NO.	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			36C25526Q0617	10-07-2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NO. (No Collect Calls)	8. OFFER DUE DATE/LOCAL TIME
	Murphy, Michael michael.murphy7@va.gov	913-946-1970	10-23-2026 15:00 CDT

9. ISSUED BY — CODE 36C255

Department of Veterans Affairs
Network Contracting Office (NCO) 15
3450 S 4th Street Trafficway

Leavenworth KS 66048

10. THIS ACQUISITION IS

- [ ] UNRESTRICTED OR [X] SET ASIDE: 100 % FOR:
- [X] SMALL BUSINESS
- [ ] HUBZONE SMALL BUSINESS
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
- [ ] WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
- [ ] EDWOSB
- [ ] 8(A)

NAICS: 541350

SIZE STANDARD: $11.5 Million

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)	13b. RATING
[ ] SEE SCHEDULE		[ ]	N/A

14. METHOD OF SOLICITATION: [X] RFQ [ ] IFB [ ] RFP

15. DELIVER TO — CODE

Dwight D. Eisenhower VA Medical Center

4101 S. 4th St.
Leavenworth KS 66048-5014

16. ADMINISTERED BY — CODE 36C255

Department of Veterans Affairs
Network Contracting Office (NCO) 15
3450 S 4th Street Trafficway

Leavenworth KS 66048

17a. CONTRACTOR/OFFEROR CODE — FACILITY CODE

TELEPHONE NO. — UEI: — EFT:

18a. PAYMENT WILL BE MADE BY — CODE 36C255

Department of Veterans Affairs
Financial Services Center
http://www.fsc.va.gov/einvoice.asp

Austin TX

PHONE: 877-353-9791 FAX: 512-460-5429

[ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED
[ ] SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES (See CONTINUATION Page)	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Fire, Smoke, and Automated Door Inspection, Maintenance and Repair Services. Contract Type: Indefinite-Delivery, Indefinite-Quantity (IDIQ) Ordering Period: Five (5) ordering periods of twelve (12) months each (60 months total).Individual bulk funded task orders will be issued, each funded for up to twelve (12) months. This is a 100% small business set aside. Offerors must be small under NAICS 541350 and active in SAM at time of offer. Site Visit is scheduled for Thursday 15 Oct. 26, 0900 Questions are due NLT Friday 16 Oct. 26, 1500 CDT RFQ Submissions are due Friday 23 Oct. 26, 1500 CDT (Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA: See CONTINUATION Page

26. TOTAL AWARD AMOUNT (For Govt. Use Only)

[ ] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA [X] ARE [ ] ARE NOT ATTACHED.

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[X] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN One(1) COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

[ ] 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)	31c. DATE SIGNED
		Murphy, Michael Contracting Officer	

Table of Contents

SECTION A 1

A.1 SF 1449 SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES 1

SECTION B - CONTINUATION OF SF 1449 BLOCKS 3

B.1 CONTRACT ADMINISTRATION DATA 3
B.2 PRICE/COST SCHEDULE 4
B.3 STATEMENT OF WORK (SOW) 8

SECTION C - CONTRACT CLAUSES 20

C.1 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023) (DEVIATION OCT 2025) 20
C.2 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998) 25
C.3 52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS (APR 2026) 28
C.4 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (DEVIATION NOV 2025) 28
C.5 52.216-18 ORDERING (AUG 2020) 38
C.6 52.216-19 ORDER LIMITATIONS (OCT 1995) 39
C.7 52.216-22 INDEFINITE QUANTITY (OCT 1995) (DEVIATION NOV 2025) 40
C.8 CL-120 SUPPLEMENTAL INSURANCE REQUIREMENTS 40
C.9 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020) 41
C.10 852.204-72 PERSONNEL VETTING AND CREDENTIALING (MARCH 2026) 41

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS 44

D.1 LIST OF ATTACHMENTS 44
D.2 WAGE DETERMINATION 44
D.3 QUALITY ASSURANCE SURVEILLANCE PLAN (QASP) 45
D.4 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (FAR 52.222-42) 49

SECTION E - SOLICITATION PROVISIONS 50

E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998) 52
E.2 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021) (DEVIATION OCT 2025) 52
E.3 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (DEVIATION NOV 2025) 53
E.4 52.216-1 TYPE OF CONTRACT (APR 1984) (DEVIATION NOV 2025) 57
E.5 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024) (DEVIATION NOV 2025) 58
E.6 52.233-2 SERVICE OF PROTEST (SEP 2006) (DEVIATION NOV 2025) 58
E.7 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020) 58
E.8 852.252-70 SOLICITATION PROVISIONS OR CLAUSES INCORPORATED BY REFERENCE (JAN 2008) 59

SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR: TBD

b. GOVERNMENT: Contracting Officer 36C255 Michael P. Murphy
Department of Veterans Affairs
Network Contracting Office (NCO) 15
3450 S 4th Street Trafficway
Leavenworth KS 66048

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

[] 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or
[] 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly []
b. Semi-Annually []
c. Other [X] Monthly in arrears

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

Financial Services Center

http://fsc.va.gov/einvoice.asp

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PRICE/COST SCHEDULE

B.2.1 IDIQ Terms

(a) Contract term. This is a single-award, firm-fixed-price (fixed unit price) IDIQ contract with a term of five (5) years (60 months) from award, made up of five 12-month ordering periods. There are no option years; all five ordering periods are part of the contract. Dates shown below are estimates based on an 11/1/2026 award.

(b) Guaranteed minimum. The Government guarantees a minimum of $2,500.00 for the entire contract term, which will be obligated on the first task order at award. The Government is not obligated to order more than the guaranteed minimum.

(c) Contract maximum. The total value of all task orders under this contract shall not exceed $750,000.00 across all five ordering periods.

(d) Estimated quantities. The quantities below are the Government's best estimates for evaluation and planning only. They are not purchased by this contract (see FAR 52.216-22). Prices offered for each ordering period apply to all orders issued during that period.

(e) Ordering. The Government expects to issue one bulk-funded task order at the start of each ordering period covering the scheduled inspections and an estimated block of service-call labor, with modifications or additional task orders issued as repairs are needed (see SOW para. 7).

(f) Inventory changes. Door assemblies may be added or removed during performance and will be priced at the CLIN unit price in effect for that ordering period.

(g) All prices shall be fully burdened and include labor, supervision, travel, mileage, trip charges, tools, test equipment, consumables, reports, insurance, overhead and profit. No separate trip, travel or mobilization charges will be paid.

B.2.2 Price Schedule

Offerors shall enter a unit price and amount for every CLIN in every ordering period. CLIN X005 (parts) is a Government-established estimate and shall not be changed; it is included so every quote is evaluated on the same basis.

Ordering Period I Est. POP: 11/1/2026 through 10/31/2027

ITEM NO.	DESCRIPTION OF SUPPLIES/SERVICES	EST. QTY	UNIT	UNIT PRICE	AMOUNT
0001	Fire and Smoke Door Inspection and Minor Adjustment. Semiannual inspection, testing, minor adjustment and reporting of manual fire- and smoke-rated door assemblies per NFPA 80/105 (SOW para. 4). 124 assemblies x 2 inspections.	248	EA	**$**_____	**$**_____
0002	Automatic Door Inspection and Preventive Maintenance. Semiannual AAADM inspection, testing, PM and reporting of automatic doors per ANSI/BHMA A156.10/.19/.38 (SOW para. 5). 57 doors x 2 inspections.	114	EA	**$**_____	**$**_____
0003	Service Call / Repair Labor, Normal Hours (Mon-Fri, 8:00 AM - 4:30 PM, excluding Federal holidays), all door types (SOW paras. 6-7).	200	HR	**$**_____	**$**_____
0004	Service Call / Repair Labor, After Hours, Weekends and Federal Holidays, all door types (SOW paras. 6-7).	40	HR	**$**_____	**$**_____
0005	Repair Parts and Materials, ordered by task order or modification from the Contractor's itemized quote (SOW para. 7). Government estimate, do not change.	1	LOT	**$30,000.00**	**$30,000.00**
				ORDERING PERIOD I TOTAL	**$**_____

Ordering Period II Est. POP: 11/1/2027 through 10/31/2028

ITEM NO.	DESCRIPTION OF SUPPLIES/SERVICES	EST. QTY	UNIT	UNIT PRICE	AMOUNT
1001	Fire and Smoke Door Inspection and Minor Adjustment. Semiannual inspection, testing, minor adjustment and reporting of manual fire- and smoke-rated door assemblies per NFPA 80/105 (SOW para. 4). 124 assemblies x 2 inspections.	248	EA	$_____	$_____
1002	Automatic Door Inspection and Preventive Maintenance. Semiannual AAADM inspection, testing, PM and reporting of automatic doors per ANSI/BHMA A156.10/.19/.38 (SOW para. 5). 57 doors x 2 inspections.	114	EA	$_____	$_____
1003	Service Call / Repair Labor, Normal Hours (Mon-Fri, 8:00 AM - 4:30 PM, excluding Federal holidays), all door types (SOW paras. 6-7).	200	HR	$_____	$_____
1004	Service Call / Repair Labor, After Hours, Weekends and Federal Holidays, all door types (SOW paras. 6-7).	40	HR	$_____	$_____
1005	Repair Parts and Materials, ordered by task order or modification from the Contractor's itemized quote (SOW para. 7). Government estimate, do not change.	1	LOT	**$30,000.00**	**$30,000.00**
				ORDERING PERIOD II TOTAL	$_____

Ordering Period III Est. POP: 11/1/2028 through 10/31/2029

ITEM NO.	DESCRIPTION OF SUPPLIES/SERVICES	EST. QTY	UNIT	UNIT PRICE	AMOUNT
2001	Fire and Smoke Door Inspection and Minor Adjustment. Semiannual inspection, testing, minor adjustment and reporting of manual fire- and smoke-rated door assemblies per NFPA 80/105 (SOW para. 4). 124 assemblies x 2 inspections.	248	EA	$_____	$_____
2002	Automatic Door Inspection and Preventive Maintenance. Semiannual AAADM inspection, testing, PM and reporting of automatic doors per ANSI/BHMA A156.10/.19/.38 (SOW para. 5). 57 doors x 2 inspections.	114	EA	$_____	$_____
2003	Service Call / Repair Labor, Normal Hours (Mon-Fri, 8:00 AM - 4:30 PM, excluding Federal holidays), all door types (SOW paras. 6-7).	200	HR	$_____	$_____
2004	Service Call / Repair Labor, After Hours, Weekends and Federal Holidays, all door types (SOW paras. 6-7).	40	HR	$_____	$_____
2005	Repair Parts and Materials, ordered by task order or modification from the Contractor's itemized quote (SOW para. 7). Government estimate, do not change.	1	LOT	**$30,000.00**	**$30,000.00**
				ORDERING PERIOD III TOTAL	$_____

Ordering Period IV Est. POP: 11/1/2029 through 10/31/2030

ITEM NO.	DESCRIPTION OF SUPPLIES/SERVICES	EST. QTY	UNIT	UNIT PRICE	AMOUNT
3001	Fire and Smoke Door Inspection and Minor Adjustment. Semiannual inspection, testing, minor adjustment and reporting of manual fire- and smoke-rated door assemblies per NFPA 80/105 (SOW para. 4). 124 assemblies x 2 inspections.	248	EA	$_____	$_____
3002	Automatic Door Inspection and Preventive Maintenance. Semiannual AAADM inspection, testing, PM and reporting of automatic doors per ANSI/BHMA A156.10/.19/.38 (SOW para. 5). 57 doors x 2 inspections.	114	EA	$_____	$_____
3003	Service Call / Repair Labor, Normal Hours (Mon-Fri, 8:00 AM - 4:30 PM, excluding Federal holidays), all door types (SOW paras. 6-7).	200	HR	$_____	$_____
3004	Service Call / Repair Labor, After Hours, Weekends and Federal Holidays, all door types (SOW paras. 6-7).	40	HR	$_____	$_____
3005	Repair Parts and Materials, ordered by task order or modification from the Contractor's itemized quote (SOW para. 7). Government estimate, do not change.	1	LOT	**$30,000.00**	**$30,000.00**
				ORDERING PERIOD IV TOTAL	$_____

Ordering Period V Est. POP: 11/1/2030 through 10/31/2031

ITEM NO.	DESCRIPTION OF SUPPLIES/SERVICES	EST. QTY	UNIT	UNIT PRICE	AMOUNT
4001	Fire and Smoke Door Inspection and Minor Adjustment. Semiannual inspection, testing, minor adjustment and reporting of manual fire- and smoke-rated door assemblies per NFPA 80/105 (SOW para. 4). 124 assemblies x 2 inspections.	248	EA	$_____	$_____
4002	Automatic Door Inspection and Preventive Maintenance. Semiannual AAADM inspection, testing, PM and reporting of automatic doors per ANSI/BHMA A156.10/.19/.38 (SOW para. 5). 57 doors x 2 inspections.	114	EA	$_____	$_____
4003	Service Call / Repair Labor, Normal Hours (Mon-Fri, 8:00 AM - 4:30 PM, excluding Federal holidays), all door types (SOW paras. 6-7).	200	HR	$_____	$_____
4004	Service Call / Repair Labor, After Hours, Weekends and Federal Holidays, all door types (SOW paras. 6-7).	40	HR	$_____	$_____
4005	Repair Parts and Materials, ordered by task order or modification from the Contractor's itemized quote (SOW para. 7). Government estimate, do not change.	1	LOT	**$30,000.00**	**$30,000.00**
				ORDERING PERIOD V TOTAL	$_____
				TOTAL COST (ALL ORDERING PERIODS)	$_____

B.3 STATEMENT OF WORK (SOW)

Fire, Smoke and Automatic Door Inspection, Maintenance and Repair Services

1. Background and Purpose

The Dwight D. Eisenhower VA Medical Center (VAMC), Leavenworth, Kansas, needs inspection, preventive maintenance and repair services for its fire-rated doors, smoke-rated doors and automatic door systems, to keep these life-safety and access systems code compliant and working reliably in an occupied healthcare campus.

2. Scope

The Contractor shall furnish all management, supervision, qualified labor, tools, test equipment, materials, parts, transportation and documentation needed to (a) inspect and make minor adjustments to manual fire and smoke door assemblies, (b) inspect, maintain and repair automatic door systems, and (c) perform repairs ordered under task orders. Work covers the doors in paragraph 13 (Door Schedule): approximately 57 automatic doors and 124 manual fire/smoke door assemblies in Buildings 160, 122, 88/89, 90, 91 and other campus areas. The inventory will be validated with the COR during the first inspection.

3. Applicable Standards

All work shall comply with the latest editions of NFPA 80 (Fire Doors and Other Opening Protectives), NFPA 101 (Life Safety Code), NFPA 105 (Smoke Door Assemblies), ANSI/BHMA A156.10, A156.19 and A156.38 as applicable, OSHA 29 CFR 1910 and 1926, NFPA 70E, manufacturer instructions, and VA facility policies.

4. Fire and Smoke Door Inspections (CLIN X001)

4.1 The Contractor shall inspect every manual fire and smoke door assembly twice per ordering period (semiannually), about six months apart, on dates scheduled with the COR.

4.2 Each inspection shall at a minimum: test the door, closer and positive latching from the full open position; inspect frames, hinges, pivots, closers, coordinators, latches, seals, gasketing, astragals, vision lites and labels; check clearances against NFPA 80; and confirm hold-open devices release on fire alarm.

4.3 Minor adjustment and lubrication, and replacement of minor hardware such as screws and fasteners, are included in the CLIN X001 unit price.

4.4 Deficiencies beyond minor adjustment shall be documented with a recommended fix and an itemized repair quote (see para. 7). A door that will not close and latch shall be reported to the COR verbally before the technician leaves the site.

5. Automatic Door Inspection and Preventive Maintenance (CLIN X002)

5.1 The Contractor shall inspect and maintain every automatic door twice per ordering period (semiannually) using AAADM and ANSI/BHMA inspection criteria.

5.2 Each inspection shall at a minimum test operators, controls, sensors, activation devices, safety and stall functions, breakaway/egress, opening and closing speeds and forces, and fire alarm interface; inspect and lubricate tracks, rollers, arms and hardware; check power supplies and battery backups; and verify required signage.

5.3 Adjustments needed to bring a door into ANSI compliance, and replacement of AAADM-required signage, are included in the CLIN X002 unit price. The Contractor shall affix an AAADM inspection label to each compliant door.

6. Service Calls and Response Time (CLINs X003 and X004)

6.1 The Contractor shall keep a telephone number answered 24 hours a day, 7 days a week, for service requests from the COR or Engineering Service.

6.2 For service calls received by 12:00 PM (noon) local time on a business day, a qualified technician shall be on site the same day before close of business. For calls received after 12:00 PM, or on a weekend or Federal holiday, a technician shall be on site by 10:00 AM the next business day.

6.3 For a life-safety or security emergency (for example, a fire door that will not close and latch, an emergency department or ambulance entrance that will not open, or a door that will not secure), the Contractor shall call back within 1 hour and have a technician on site within 4 hours, any time of day.

6.4 Labor is billed in one-half (0.5) hour increments for time on site, with a one (1) hour minimum per call. Travel time is not billable. After-hours rates (CLIN X004) apply only when the Government asks for work outside normal hours.

7. Repairs (CLIN X005 and labor CLINs)

7.1 Repairs beyond the minor work included in CLINs X001 and X002 will be ordered by task order or modification. Before starting, the Contractor shall give the COR an itemized written quote listing labor hours at the contract rate and each part with its price. Parts prices shall be supported by a manufacturer price list, catalog or supplier invoice on request.

7.2 No repair work may begin until the Contracting Officer issues a task order or modification, except emergency make-safe work under para. 6.3, limited to 4 labor hours and $1,000.00 in parts per occurrence, which shall be documented and submitted for a confirming order within 2 business days.

7.3 Replacement parts shall be new, genuine OEM or equivalent parts that keep the listing and labeling of the door assembly. Repairs to fire-rated assemblies shall not void the assembly label.

7.4 Warranty. Parts are warranted for 12 months and workmanship for 90 days from completion of the repair.

8. Coordination

8.1 Scheduled inspections shall be performed during administrative hours (para. 18) unless the COR asks otherwise. The Contractor shall check in with Engineering Service on arrival and departure.

8.2 Work at emergency department entrances, ambulance bays, operating rooms, sterile processing, pharmacy clean rooms, mental health areas and other sensitive areas shall be coordinated with the COR in advance to protect patient care, infection control, security and emergency egress.

8.3 The Contractor shall notify the COR before taking any door out of service and shall not leave a fire, smoke or required egress door out of service unattended without COR approval.

9. Contractor Qualifications

9.1 All automatic door inspections and repairs shall be performed by technicians with current AAADM certification who are factory trained on, or have documented experience with, the equipment being serviced.

9.2 Fire and smoke door inspections shall be performed by individuals with knowledge and understanding of the operating components of the assemblies being inspected, as required by NFPA 80, such as DHI Fire and Egress Door Assembly Inspector (FDAI), ICC or equivalent.

9.3 The Contractor shall give the COR copies of current certifications for each technician before that technician first performs work, and keep them current for the life of the contract.

10. Reports and Records

10.1 Within 10 working days after each scheduled inspection, the Contractor shall deliver an inspection report in electronic (searchable PDF and Excel) and paper format showing, for each door: door ID, location, make and model where known, pass/fail, deficiencies, adjustments made, recommended corrective action, inspection date, and the technician's name and certification number.

10.2 Within 15 working days after completing a repair, the Contractor shall deliver a service report showing the door ID, problem found, work performed, parts used, labor hours, test results and the condition the door was left in.

10.3 Reports shall meet NFPA 80 and NFPA 105 record-keeping requirements so they can be used for The Joint Commission and VA life-safety surveys.

11. Acceptance Criteria

Inspected and repaired doors shall be operational and code compliant when the Contractor leaves the site, with any remaining deficiencies documented under para. 4.4 or 7.1. The Government will monitor performance under the Quality Assurance Surveillance Plan (Section D) and para. 19. Work that does not meet these standards will be corrected at no additional cost.

12. Security, Safety and Access

12.1 Contractor personnel shall comply with VA identification and access requirements, wear VA-issued or company identification at all times, and follow facility parking, smoking and safety rules.

12.2 The Contractor shall follow OSHA, lock-out/tag-out and VA Infection Control Risk Assessment (ICRA) requirements. Contractor personnel will not have access to VA information systems or patient information. No Government-furnished property will be provided.

13. Door Schedule

*** Automated/Automatic Doors**

1. LCN Sing (Dormatic), Single, Bldg. A westside Basement, D0048975
2. Horton BI-part Slider, Bldg. 71 basement tunnel, D0048971-AD21
3. Besam Swing Single, Bldg. A 1st FL entry to Business suite, D0098802-AD26
4. BESAM SWING SINGLE Bldg. A 1st Fl entry to business suited D098802-**AD26**
5. HORTON AUTO REVOLVER Main Entry Exterior, D0046517 - Ad20
6. HORTON SWING SINGLE Main entry, ADA AD19
7. BESAM SWING SINGLE Women's Clinic - Main Entrance, D0047231 - AD16
8. STANLEY SWING SINGLE Patriot Store Exit, D0047228 - AD10
9. DORMA ED100 SINGLE SWING Patriot Store Entrance, D0047227 - AD9
10. BESAM SWING SINGLE Exit B-1 Exit by B110, D0047229 - AD04
11. BESAM SWING SINGLE West B-1 by B119, D0047230 - AD03
12. GYROTECH SWING SINGLE Bldg. 2nd Floor East Office
13. GYROTECH SWING SINGLE Bldg. B 2nd Floor West Office, D009878 - **AD06**
14. DETEX SINGLE SWING Pharmacy Clean Room
15. HORTON DBL SWING OR EGRESS, B311 Lab
16. HORTON DBL SWING OR EGRESS, Lab Area, D0098970 - Ad12
17. DORMA ED700 SINGLE SWING, B405 - Men's Restroom, 001-00025- **AD14**
18. DORMA ED700 SINGLE SWING, B1410 - Women's Restroom, AD13
19. HORTON SWING SINGLE, B146A Podiatry Waiting, Doo98791
20. HORTON SWING SINGLE, B146A Podiatry Interior Waiting, D0098792
21. BESAM SLIDER, ER Main Entry Interior, D0064677-AD37
22. BESAM SLIDER, ER Main Entry Exterior, D0064677 - AD38
23. DORMA ED700 PAIR, ER Hallway entrance, D0048977
24. STANLEY TELESCOPIC SINGLE, Ambulance Entrance, D0048978
25. NORTON AUTO SWING PAIR, Interior Ambulance Bay, D0098793
26. BESAM SWING SINGLE, ER Waiting Room, D0048976
27. BESAM SWING SINGLE, C129B Men's Restroom, D0098795
28. BESAM SWING SINGLE, C129A Women's Restroom, D0098794
29. LCN DBL SWING OR EGRESS(DORO), Endoscopy Entrance, AD40
30. HORTON DBL SWING OR EGRESS, ICU Entrance, AD39
31. BESAM DBL SWING OR EGRESS, X-Ray Entrance, AD51
32. BESAM SWING SINGLE, C510 Men's Restroom, AD46
33. BESAM SWING SINGLE, C508 Women's Restroom, AD45
34. BESAM BI-PART SLIDER, Surgery Entrance, D0047232 AD54
35. BESAM DBL SWING OR EGRESS, Operating Room Entrance by G24, D0098796
36. BESAM DBL SWING OR EGRESS, Operating Room Entrance by C6142, D0098797
37. BESAM SWING SINGLE, Room C602
38. BEAM SWING SINGLE, Room 601
39. DORMA ED100 SINGLE SWING, Bldg. 122 NE Entrance, D0047233

40. HORTON SWING SINGLE, Bldg. 122 NW Entrance, D0047234 AD54
41. HORTON BIPART TELESCOPIC, Bldg. 122 Main Interior, D0047235 AD56
42. HORTON SWING SINGLE, Bldg. 122 Main Exterior, D0047236 - AD57
43. HORTON SWING SINGLE, Bldg. 122 South Hall East Exit, AD55
44. HORTON SWING SINGLE, Bldg. 122 West Greenhouse, AD58
45. HORTON SWING SINGLE, Bldg. 122 East Greenhouse, AD70
46. DORMA ED100 SINGLE SWING, Bldg. 71 Basement Center West Side, D0048972 - AD01
47. HORTON BI-PART SLIDER, Bldg. 71 Basement Tunnel, D0048973 - AD02
48. BESAM SLIDER, Bldg. 160 East Exterior Entrance, D0048969 - AD61
49. BESAM SLIDER, Bldg. 160 East Interior, D0048968 - AD62
50. BESAM SLIDER, Bldg. 160 West Interior, D0048967 AD59
51. BESAM SLIDER, Bldg. 160 West Exterior Entrance, D0048966 - AD60
52. DORMA ED100 SINGLE SWING, Bldg. 160 Mental Exterior, D0046585
53. DORMA ED100 SINGLE SWING, Bldg. 160 Mental Interior, D0046585
54. BESAM BI-PART SLIDER, B-1 Exterior Dock Entrance, AD07
55. DORMA ESA300 TELESCOPIC, B-1 Inner Dock Hallway
56. BESAM SLIDER, Sterile Processing Outer Door
57. BESAM SLIDER, Sterile Processing Outer Door,

*** Fire and Smoke Doors (Manual Operations)**

Bldg.160

1. SPF1 Stair B160
2. SPD1 Stair 2 B160
3. SPG1 Stair 5 B160
4. SPG1 Stair 6 B160
5. SPD2 Stair 1 B160
6. SPD RM 244 B160
7. SPD2 Stair 2 B160
8. SPG Stair 2 5 B160
9. SPG Stair 2 6 B160
10. SPG Stair 6 B160
11. SPD152 RM B160
12. 160 DH-1-105
13. 160 DH-1-43
14. 160 DH-2-78
15. 160DH-2-48
16. 160 DOM walkway Pair to Hospital
17. 160-G
18. SPF1 stair 4
19. SPD1 Stair 1
20. SPD1 Stair 1

Bldg. 122

1. SPB Stair 2 -B122
2. SPB Stair 1 B122
3. SPB Stair 5 Laundry/Clothing issue
4. SP1 Stair 1 B122 Basement
5. SP1 Stair 1 B122 1st Floor
6. B122 9 and 10 1st Floor
7. SP1 Stair 4 B122 Dinning RM
8. SP1 Stair 3 B122 1st Floor
9. P1 Stair 2 B122 1st Floor
10. SP2 Stair 1B122 2nd Floor
11. SP2 Stair 3 B122 2nd Floor
12. SP2 Stair 2 Stair 4
13. Conference Room 204
14. Waiting Room 220
15. 202A/257 Room 2nd Floor
16. SP3 Stair 1 B122 3rd Floor
17. SP3 Stair 3 and 4 B122 3rd Floor
18. SP Room 320-B122
19. B122 13 and 13
20. Corridor Smoke Doors
21. 304 room South
22. SP3 Stair 4
23. DH 21 6 and 7 2nd floor
24. DH3 1 13 and 14 3rd floor
25. DH 3-7 and 3-8

Bldg. 88/89

1. 88 DH-2-8 and 2-7
2. 88 DH-34 and 3-3
3. 88 DH-1-6 and 1-5
4. 88 DH-1-7 and 1-8
5. 88 DH1-11 and 1-12
6. 88 DH-1-10 and 1-9
7. 88 DH-2-9 and 2-10
8. 88 DH-3-8 and 3-7
9. 88 DH-4-7 and 4-8
10. 88 DH-4-6 and 4-5
11. 88 DH-2-2 and 2-1
12. 88 DH- 3-1 and 3-2
13. SPB1 Stair 1
14. B2 South Exit to Stairs front lobby
15. SPB2 Stair 1
16. SPB2 Stair 2

17. SPB2 Stair 3
18. SPB1 Stair 3
19. SPB3 Stair 1
20. SPB3 Stair 2
21. SPB1 Stair 1
22. SPB1 Stair 2
23. SPB5 Stair 1
24. B4 Stair 1
25. B4 Stair 2

Bldg. 90

1. 90-DH-B3
2. 90-DH-B4
3. 90-DH-1-1 and 1-2
4. 90-DH-2-2 and 2-1
5. 90-DH-3-1 and 3-2
6. 90 DH-B2 and B1
7. 90 DH-1-1 and 1-2
8. 90 DH-2-2 and 2-1
9. 90 DH-3-1 and 2-7
10. A-30 tunnel to bldg. 71
11. 163-DH-2-1 and 2-2 Smoke doors to DOM Elev
12. A Basement Stairwell 2
13. Bldg. A Basement Stair 1
14. SPA 1 Stair 2 B90
15. SPA 1 Stair 1
16. SPA 2 Stair 2
17. SPA 2 Stair 1
18. 88-DH-2-8 and 2-7
19. SPA3 Stair 2
20. SPA3 Stair 1
21. A4 Stair 1
22. A4 Stair 2
23. A5 Stair 1
24. A5 Stair 2
25. A6 Stair 1
26. A6 Stair 2

Bldg. 91

1. 91 DH-1-1 and 1-2
2. 91 DH-1-10 and 1-9
3. 91 DH-2-1 and 2-2
4. 91 DH-3-3 and 3-4
5. 88 DH4-2 and 4-1
6. 91 DH-4-4 and 4-3

7. 91 DH-5-2 and 5-1
8. 91 DH-6-1 and 6-2
9. SS1 Stair 2
10. C1 Stair 3
11. C128 Telecom
12. C1 Stair 2
13. C2 Stair 2
14. C2 Stair 1
15. C2 Stair 3
16. C3 Stair 2
17. C3 Stair 1
18. C3 Stair 3
19. C4 Stair 3
20. C4 Stair 2
21. C4-Stair 1
22. C5 Stair 3
23. C5 Stair 2
24. C5 Stair 1
25. C6 Stair 3
26. C6 Stair 1
27. C6 Stair 2
28. Bldg. 163 DH-2-1 and 2-2

14. Contract Administration Data

All contract administration functions will be retained by the Department of Veterans Affairs.

The Contracting Officer will be the only person authorized to approve changes or modify any of the requirements under this contract. The Contractor shall communicate with the Contracting Officer on all matters pertaining to contract administration. Only the Contracting Officer will be authorized to make commitments or issue changes that affect price, quantity, or quality of performance of this contract. In the event the Contractor effects any such change at the direction of any person other than the Contracting Officer, the change shall be considered unauthorized, and no adjustment will be made in the contract price to cover any increase in costs incurred as a result thereof.

15. Contracting Officer's Representative

In accordance with VAAR 852.201-70, Contracting Officer's Representative, the COR for this contract will be designated in writing at award.

16. Acronyms and Definitions

CDR: Contract Discrepancy Report. Report issued by the Government to the contractor to document a supply or service found to be unacceptable during contract performance.

CLIN: Contract Line-Item Number. Unit of work (or service) to be performed (or delivered) by the contractor as a pay item.

CO: Contracting Officer. A person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings.

COR: Contracting Officer's Representative. An individual, including a Contracting Officer's Representative (COR), designated and authorized in writing by the contracting officer to perform specific technical or administrative functions.

QA: Quality Assurance. Actions taken by the government to assure contracted services meet SOW requirements.

17. Personnel

Non-Personal Services

This is a non-personal services contract. Personnel rendering services under this contract are not subject either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the government and its employees. The Government shall not exercise any supervision or control over the Contractor personnel performing services herein. Contractor personnel shall be accountable solely to the Contractor who, in turn, is responsible to the Government.

Contractor Compliance with the Immigration and Nationality Act of 1952

The Contractor shall comply with any and all legal provisions contained in the Immigration and Nationality Act of 1952, As Amended; its related laws and regulations that are enforced by Homeland Security, Immigration and Customs Enforcement and the U.S Department of Labor as these may relate to non-immigrant foreign nationals working under contract or subcontract for the Contractor while providing services to the Department of Veterans Affairs.

18. Hours of Operation

Business hours for the VAMC follow:

a. Administrative hours: Monday through Friday, 8:00 a.m. - 4:30 p.m.

b. National Holidays: The 11 holidays observed by the Federal Government are:

New Year's Day;

Martin Luther King Jr.'s Birthday;

Presidents Day;

Memorial Day;

Juneteenth National Independence Day;

Independence Day;

Labor Day;

Columbus Day;

Veterans Day;

Thanksgiving;

Christmas; and

any other day specifically declared by the President of the United States to be a national holiday.

(c.) Off-Duty hours: Friday through Monday, 4:30 p.m. - 8:00 a.m.; Monday through Thursday, 4:30 pm – 8:00 am.

19. Quality Control

CONTRACT PERFORMANCE MONITORING. The COR may perform surveillance of

services by any of the methods listed below:

a. Observing actual performance;

b. Inspecting the services to determine whether the performance meets the performance standards; and

c. Review of any other appropriate records.

(1) When unacceptable performance occurs, the COR shall inform the Contractor and the Contracting Officer. This will normally be in writing unless circumstances necessitate verbal communication. In any case the COR shall document the discussion and place it in the COR file.

When the COR determines formal written communication is required, the COR shall prepare a Contract Discrepancy Report (CDR), and present it to the contractor program manager. The Contractor shall acknowledge receipt of the CDR in writing. The CDR will specify if the Contractor is required to prepare a corrective action plan to document how the Contractor shall correct the unacceptable performance and avoid a recurrence. The CDR will also state how long after receipt the Contractor has to present this corrective action plan to the COR. The Government shall review the Contractor corrective action plan to determine acceptability. Any CDRs may become a part of the supporting documentation for any contractual action deemed necessary by the Contracting Officer.

(2) In accordance with VAAR 852.201-70, the Government shall periodically evaluate the Contractor performance by appointing a Contracting Officer's Representative (COR) to monitor performance to ensure services are received. The Government representative(s) shall evaluate the Contractor performance through inspections of observations, inspection of services or any other form of documentation and all complaints from VA personnel. The Government may inspect as each task is completed or increase the number of quality assurance inspections if deemed appropriate because of repeated failures or because of repeated customer complaints. Likewise, the Government may decrease the number of quality assurance inspections if performance dictates. The Government Contracting Officer shall make final determination of the validity of customer complaint(s).

(3) If any of the services do not conform to contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, with no increase in contract amount. When the defects in services cannot be corrected by re-performance, the Government may require the Contractor to take necessary action to ensure that future performance conforms to contract requirements at no additional cost to the Government.

20. Contract Security

"The C&A requirements do not apply, and a Security Accreditation Package is not required".

SECTION C - CONTRACT CLAUSES

C.1 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023) (DEVIATION OCT 2025)

(a) *Definitions*. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice.* The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment—*

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by FAR part 33 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract,

(5) Solicitation provisions incorporated in the solicitation.

(6) Other paragraphs of this clause.

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) *Unauthorized obligations*.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record*. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference*. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Clause)

ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

C.2 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52 (FAR)
http://www.va.gov/oal/library/vaar/index.asp (VAAR)

(End of Clause)

FAR Number	Title	Date
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT—ALTERNATE I	NOV 2021
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN 2011
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT 2018 (DEVIATION NOV 2025)
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED	JAN 2025 (DEVIATION NOV 2025)
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV 2015 (DEVIATION NOV 2025)
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE	NOV 2020 (DEVIATION NOV 2025)
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS	JAN 2025 (DEVIATION NOV 2025)
52.219-14	LIMITATIONS ON SUBCONTRACTING (fill-in, paragraph (f)(1): compliance will be determined by the end of the performance period for each order issued under the contract)	OCT 2022 (DEVIATION NOV 2025)
52.222-3	CONVICT LABOR	JUN 2003 (DEVIATION NOV 2025)
52.222-35	EQUAL OPPORTUNITY FOR VETERANS	JUN 2020 (DEVIATION NOV 2025)
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES	JUN 2020 (DEVIATION NOV 2025)
52.222-37	EMPLOYMENT REPORTS ON VETERANS	JUN 2020 (DEVIATION NOV 2025)
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT	DEC 2010 (DEVIATION NOV 2025)
52.222-41	SERVICE CONTRACT LABOR STANDARDS	AUG 2018 (DEVIATION NOV 2025)
52.222-42	STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (fill-in: see Section D.4)	MAY 2014
52.222-43	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS—PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS)	AUG 2018 (DEVIATION NOV 2025)
52.222-50	COMBATING TRAFFICKING IN PERSONS	NOV 2021 (DEVIATION NOV 2025)
52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION	JAN 2025 (DEVIATION NOV 2025)

FAR Number	Title	Date
52.222-62	PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706	JAN 2022 (DEVIATION NOV 2025)
52.223-20	AEROSOLS	MAY 2024
52.223-23	SUSTAINABLE PRODUCTS	MAY 2024 (DEVIATION NOV 2025)
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.229-12	TAX ON CERTAIN FOREIGN PROCUREMENTS	FEB 2021 (DEVIATION SEP 2025)
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	MAR 2023
52.233-3	PROTEST AFTER AWARD	AUG 1996 (DEVIATION NOV 2025)
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT 2004 (DEVIATION NOV 2025)
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	JAN 2025 (DEVIATION APR 2026)
52.217-8	OPTION TO EXTEND SERVICES (fill-in: the Contracting Officer may exercise the option by written notice to the Contractor within 30 days before the contract expires)	NOV 1999
52.219-28	POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION	JAN 2025 (DEVIATION NOV 2025)
52.222-55	MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026	JAN 2022 (DEVIATION NOV 2025)
52.223-2	REPORTING OF BIOBASED PRODUCTS UNDER SERVICE AND CONSTRUCTION CONTRACTS	MAY 2024 (DEVIATION NOV 2025)
52.223-5	POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION	MAY 2024
52.228-5	INSURANCE—WORK ON A GOVERNMENT INSTALLATION	JAN 1997
52.229-3	FEDERAL, STATE, AND LOCAL TAXES	FEB 2013 (DEVIATION SEP 2025)
52.232-18	AVAILABILITY OF FUNDS	APR 1984
52.237-2	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION	APR 1984
852.201-70	CONTRACTING OFFICER'S REPRESENTATIVE	DEC 2022
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.204-70	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	MAR 2026 (DEVIATION FEB 2026)
852.215-70	SERVICE-DISABLED VETERAN-OWNED AND VETERAN-OWNED SMALL BUSINESS EVALUATION FACTORS	JAN 2023 (DEVIATION)
852.215-71	EVALUATION FACTOR COMMITMENTS	OCT 2019
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899	APR 2025 (DEVIATION)
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS	NOV 2018
852.242-71	ADMINISTRATIVE CONTRACTING OFFICER	OCT 2020

C.3 52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS (APR 2026)

(a)*Definitions*. As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (*e.g.*, vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of Clause)

C.4 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (DEVIATION NOV 2025)

(a) *Definitions*. As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the

System for Award Management (SAM) at https://www.sam.gov (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract*. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures*. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers*. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract*.

(1) *Certain telecommunications and video surveillance equipment, systems, or services*.

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions*.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at *https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists*.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at *https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information*.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at *https://www.trade.gov/consolidated-screening-list*, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition*. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions*.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over $15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders*.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase “FASCSA order” in the System for Award Management (SAM) at *https://www.sam.gov* to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f)*Reasonable inquiry*. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity’s possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report*.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at *https://dibnet.dod.mil*.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report*.

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

C.5 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from the date of award through 60 months after award (estimated 11/1/2026 through 10/31/2031).

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

C.6 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than $500.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

(1) Any order for a single item in excess of $150,000.00;

(2) Any order for a combination of items in excess of $200,000.00; or

(3) A series of orders from the same ordering office within 5 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 2 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

C.7 52.216-22 INDEFINITE QUANTITY (OCT 1995) (DEVIATION NOV 2025)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 4/30/2032 (six months after the last ordering period ends, to allow for FAR 52.217-8).

(End of Clause)

C.8 CL-120 SUPPLEMENTAL INSURANCE REQUIREMENTS

In accordance with FAR 28.307-2 and FAR 52.228-5, the following minimum coverage shall apply to this contract:

(a) Workers' compensation and employers liability: Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least $100,000 is required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(b) General Liability: $500,000.00 per occurrences.

(c) Automobile liability: $200,000.00 per person; $500,000.00 per occurrence and $20,000.00 property damage.

(d) The successful bidder must present to the Contracting Officer, prior to award, evidence of general liability insurance without any exclusionary clauses for asbestos that would void the general liability coverage.

(End of Clause)

C.9 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any VA Acquisition Regulation (48 CFR Chapter 8) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

C.10 852.204-72 PERSONNEL VETTING AND CREDENTIALING (MARCH 2026)

(a) Definitions. As used in this clause –

VA Information system is the same as information system and means, pursuant to 38 U.S.C. 5727, a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information whether automated or manual.

VA sensitive information means all VA data, on any storage media or in any form or format, which requires protection due to the risk of harm that could result from inadvertent or deliberate disclosure, alteration, or destruction of the information and includes sensitive personal information. The term includes information where improper use or disclosure could adversely affect the ability of VA to accomplish its mission, proprietary information, records about individuals requiring protection under various confidentiality provisions such as the Privacy Act and the HIPAA Privacy Rule, and information that can be withheld under the Freedom of Information Act. Examples of VA sensitive information include the following: individually-identifiable medical, benefits, and personnel information; financial, budgetary, research, quality assurance, confidential commercial, critical infrastructure, investigatory, and law enforcement information; information that is confidential and privileged in litigation such as information protected by the deliberative process privilege, attorney work-product privilege, and the attorney-client privilege; and other information which, if released, could result in violation of law or harm or unfairness to any individual or group, or could adversely affect the national interest or the conduct of Federal programs.

(b) General. Contractor personnel assigned to work for or on behalf of VA must undergo a background investigation commensurate with the risk and sensitivity level designation associated with the work to be performed at the level indicated in the contract. The Contractor and subcontractors shall comply with VA Directive/Handbook 0710, Personnel

Security and Suitability Program, which can be accessed at: https://vaww.va.gov/vapubs/index.cfm

(c) Risk and Sensitivity Levels. The following table identifies the risk and sensitivity levels that apply to any personnel providing services under this contract.

*VA Administrations, organizations and staff offices will use the OPM Position Designation Tool.

Positions/Tasks Designated as Non-Sensitive Positions - Tier 1/Low Risk
All Contractor and subcontractor technicians performing on-site fire, smoke and automatic door inspection, maintenance and repair (all CLINs)
Positions/Tasks Designated as Non-Sensitive Positions - Tier 2/Mod Risk
Not Applicable
Positions/Tasks Designated as Non-Sensitive Positions - Tier 4/High Risk
Not Applicable

Security clearances are granted to individuals with a specific requirement for access to classified material (for example, Confidential, Secret and Top Secret). Contractor personnel that are required to obtain a security clearance will be subject to a Tier 3 or Tier 5 investigation. The following sensitivity designations have been assigned for the identified Tier 3 and Tier 5 required by this contract:

Tier 3: Not Applicable

Tier 5: Not Applicable

(d) Fitness. The results from a background investigation are used to determine if an individual's fitness is sufficient for that individual to perform work for or on behalf of VA in the position identified in this contract. Contractor fitness determinations are made in accordance with 5 CFR Part 731.202.

Fitness requirements for employment are separate and distinct from job qualifications. If a Contractor or subcontractor employee is found to be unsuitable or unfit to provide services under this contract, the Contractor shall immediately remove the employee from working on this contract and take those necessary steps that restrict the employee's logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information.

The Contractor shall advise the employee that they are not permitted to access any VA controlled building or real property in relation to this contract.

The removal of an unfit Contractor or subcontractor employee does not alleviate the Contractor from satisfying the requirements of this contract. The Government will not reimburse the Contractor for any costs associated with the recruitment/replacement of an employee or subcontractor employee who is found to be unfit.

(e) Identification Cards. The Government will provide a Personal Identification Verification (PIV) card or other identification card, as necessary, to fit Contractor personnel who require physical access to VA facilities and/or logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information. Contractor and subcontractor personnel shall prominently display their PIV/identification card on their persons while working at a VA facility and shall present their PIV/identification card for inspection upon request by a VA official. The Contractor must surrender the employee or subcontractor employee's PIV/identification card in accordance

with the requirements set forth in Directive/Handbook 0735 when any of the following events occur:

1. When no longer needed for contract performance.
2. Upon completion of the Contractor/subcontractor employee's employment.
3. Upon contract completion or termination.

(f) Lost/stolen. Immediately upon detection, the Contractor shall report a lost or stolen PIV/identification card to the Government authorities as identified in Directive/Handbook 0735. Within 48 hours of reporting the lost/stolen PIV/identification card, the Contractor shall submit to the Program Manager an incident report that describes the relevant facts and circumstances regarding the loss/theft. If the loss/theft was reported by the Contractor to the local police, the Contractor shall further submit a copy of the final police report to the Program Manager within 48 hours of the report being made available by the local police department. The Government will not reimburse the Contractor for any costs that result from lost/stolen PIV/identification card(s).

(g) Regular Reporting. The Contractor shall submit a status report to PIV Sponsor within 5 working days after the end of each calendar quarter and as requested by the Government in order to initiate contract closeout procedures. The report must provide the status of each contractor/subcontractor employee who is required to have a PIV/identification card during the performance of the contract. The report shall identify the Contractor and the contract number, and list the following status for each contractor/subcontractor employee who holds a PIV/identification card under this contract:

1. Contractor/subcontractor employee name.
2. Name of VA facility where Contractor/subcontractor employee works, if applicable.
3. Date background check submitted for Contractor/subcontractor employee.
4. Date PIV/identification card issued to Contractor/subcontractor employee.
5. Contractor/subcontractor employee's PIV/identification card number, as applicable.
6. Date Contractor/subcontractor employee no longer has need for PIV/identification card.
7. Date Contractor notified VA that PIV/identification card is no longer required.
8. Date Contractor returned PIV/identification card was returned to VA.

(h) Flow down of clause. The Contractor shall include the substance of this clause in subcontracts, third-party agreements, and BAA's, in which subcontractors, third-party servicers/employees, and business associates will perform functions where they will have physical access to a VA facility or logical access to VA data, information, VA sensitive information, or information technology or VA information system containing such data or information.

(End of Clause)

(End of Addendum to 52.212-4)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

D.1 LIST OF ATTACHMENTS

Attachment 1 - D.2 Wage Determination (incorporated by reference)

Attachment 2 - D.3 Quality Assurance Surveillance Plan (QASP)

D.2 WAGE DETERMINATION

USDOL SERVICE CONTRACT ACT WAGE DETERMINATION INFORMATION

This contract incorporates the U.S. Department of Labor (USDOL) wage determinations identified in the table below by reference, with the same force and effect as if they were incorporated into the solicitation in full text.

Area (County)	Wage Determination Number	Revision No.	Revision Date	Location (State)
Leavenworth	2015-5105	27	12/02/2025	KS

1 - FAR clause 52.222-41, Service Contract Labor Standards, is incorporated into this contract by reference (see C.2).

2 - In accordance with FAR 52.222-41, each service employee employed in the performance of this contract by the Contractor or any subcontractor shall be paid not less than the minimum monetary wages and shall be furnished fringe benefits determined by the Secretary of Labor, or authorized representative, as specified in any wage determination attached to this contract.

3 - This solicitation incorporates the wage determination identified in this table by reference, with the same force and effect as if it were incorporated in full text. Some wage determinations include counties that are not part of the place of performance specified in this solicitation.

4 - The full text of any wage determination identified in this table may be accessed electronically at https://sam.gov/. On the first screen, click "Search Wage Determinations" under "Wage Determinations." On the second screen, select Service Contract Act (SCA), then the state and county where the services are performed, and whether this contract was previously performed under an SCA-covered contract. Select the odd-numbered wage determination; the latest edition may then be viewed or printed.

5 - The Department of Labor has held that Contractors must pay their employees Service Contract Act wages while they are driving both to and from destinations for the VA.

6 - Upon written request, the Contracting Officer will provide a full-text copy of any wage determination identified in this table.

7 - In accordance with FAR 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards - Price Adjustment (Multiple Year and Option Contracts), paragraph (f), the Contractor shall notify the Contracting Officer of any increase claimed within 30 days after receiving a new wage determination, unless this notification period is extended in writing by the Contracting Officer.

D.3 QUALITY ASSURANCE SURVEILLANCE PLAN (QASP)

QUALITY ASSURANCE SURVEILLANCE PLAN (QASP)
Dwight D. Eisenhower VA Medical Center – Engineering Service, Project Manager
Fire, Smoke, and Auto Door Service Contract

1. INTRODUCTION

This Quality Assurance Surveillance Plan (QASP) is developed pursuant to the requirements set forth in the Performance Work Statement (PWS)/Statement of Work (SOW) for Fire, Smoke, and Auto Door Service Contract at the Dwight D. Eisenhower VA Medical Center. The QASP establishes procedures and guidelines to ensure the contractor provides inspection, maintenance, and repair services in accordance with all VA policies, industry standards, and applicable regulations. The Dwight D. Eisenhower VA Medical Center Engineering Service, as the Project Manager, is responsible for monitoring delivery of contract services.

1.1 Purpose

The QASP describes systematic surveillance methods used to monitor contractor performance, outlines required documentation and identifies resources to be employed. It ensures the contractor meets the performance standards and quality levels established in the SOW/PWS, the contractor's Quality Control Plan (QCP), and that VA only pays for services received at the required quality.

1.2 Performance Management Approach

Contract outcomes and quality requirements are specified in the SOW/PWS. This QASP details how the Engineering Service (Project Manager) will monitor and manage contractor performance to achieve expected results such as compliance with NFPA 80/105, ANSI/BHMA, OSHA, and VA standards. The QASP facilitates results-based management and allows process flexibility while enforcing compliance with laws and VA policy.

1.3 Performance Management Strategy

The contractor is responsible for quality of all services performed, including work by any subcontractors. The contractor will use a Quality Control Plan (QCP) for self-inspection of quality, timeliness, and responsiveness. The Engineering Service COR reviews contractor reports and determines compliance, incentives, or corrective action. The contractor is responsible for adjustments needed to maintain VA standards and contract compliance.

2. ROLES AND RESPONSIBILITIES

2.1 Contracting Officer (CO)

The CO is responsible for contract administration, cost control, and resolving discrepancies between contractor and VA staff observations. The CO designates the COR from Engineering Service for surveillance and may assign additional technical inspectors as necessary.

2.2 Contracting Officer's Representative (COR)

The Engineering Service COR is responsible for technical administration and surveillance of contractor performance, completing QA monitoring forms, and documenting results. The COR may not authorize contract changes. Any changes affecting contract price or scope must be referred to the CO.

3. IDENTIFICATION OF REQUIRED PERFORMANCE STANDARDS/QUALITY LEVELS

Required standards and quality levels are included in the SOW/PWS and summarized in Attachment 1 (Performance Requirements Summary). Payment is contingent on meeting contract standards. Performance exceeding requirements may qualify for incentive, while deficient performance may result in payment deduction or corrective action.

4. METHODOLOGIES TO MONITOR PERFORMANCE

4.1 Surveillance Techniques

Engineering Service will utilize:

- Random monitoring (COR/inspector)
- 100% inspection of deliverables at specified intervals
- Periodic inspections per contract schedule

4.2 Customer Feedback

Contractor must maintain professional engagement with VA staff. Customer satisfaction is measured through surveys and monitoring of written complaints submitted to COR. COR investigates and resolves valid complaints.

4.3 Acceptable Quality Levels (AQLs)

AQLs are outlined in Attachment 1 and specified in the SOW—some tasks (fire/smoke door inspections) require 100% compliance.

5. QUALITY ASSURANCE DOCUMENTATION

5.1 Performance Feedback Loop

Outcomes and standards are communicated in the SOW/PWS and measured using surveillance techniques.

5.2 Monitoring Forms

Engineering Service COR completes QA monitoring forms (Attachment 2) documenting contractor performance. Forms are retained for contract files and verification.

6. ANALYSIS OF QUALITY ASSURANCE ASSESSMENT

6.1 Determining Performance

Engineering Service analyzes surveillance data to determine if standards and AQLs are met. Contractor may be required to submit corrective action plans for deficiencies. Payment deductions may apply. Incentives may be awarded for exceeding standards.

6.2 Reporting

COR submits a monthly summary to CO, including all contractor and QA reports, providing evidence of compliance.

6.3 Reviews and Resolution

Engineering Service may conduct performance review meetings with the contractor to address deficiencies or trends. Joint corrective actions are documented. Any modifications to metrics/service levels are incorporated by contract amendment.

ATTACHMENT 1: PERFORMANCE REQUIREMENTS SUMMARY

Required Services	Performance Standards	Acceptable Quality Level (AQL)	Surveillance Method	Incentive/Penalty
Annual/Semi-Annual Fire/Smoke Door Inspection	NFPA 80/105 compliant, functional testing, documentation of deficiencies, minor adjustments	100% of doors inspected; inspection reports within 10 working days	100% inspection; random monitoring	Full payment for compliance; deduction for late/incomplete
Minor Adjustment/Lubrication	Effective operation after minor repairs and lubrication	98% of doors maintained as scheduled	Random and periodic inspection	Incentives for exceeding AQL; deduction if below
Automated/Automatic Door Repair/Inspection	ANSI/BHMA A156.10, AAADM certified techs, repairs completed as ordered under task orders	95% of repairs within specified response time; all staff certified	100% inspection; periodic audit	Deduction for late/unqualified repairs
Emergency/Service Call Response	Same-day or next-day response per SOW	95% of calls responded per timeline	Documentation review; customer feedback	Deduction for delayed response
Reporting & Documentation	Timely/accurate reports in paper and digital formats	100% accurate/timely submission	100% review of reports and files	Deduction for late/incomplete reporting

ATTACHMENT 2: SAMPLE QUALITY ASSURANCE MONITORING FORM

SERVICE or STANDARD: _____

SURVEY PERIOD: _____

SURVEILLANCE METHOD (check):

☐ Random Sampling ☐ 100% Inspection ☐ Periodic Inspection ☐ Customer Complaint

LEVEL OF SURVEILLANCE (check):

☐ Monthly ☐ Quarterly ☐ Semi-Annually ☐ Annually ☐ As Needed

PERCENTAGE OF ITEMS SAMPLED DURING SURVEY PERIOD: _____ %

ANALYSIS OF RESULTS:

Observed Service Provider Performance Measurement Rate: _____ %

Service Provider's Performance (check):

☐ Meets Standards ☐ Does Not Meet Standards

Narrative of Performance During Survey Period:

PREPARED BY: _____ DATE: _____

ATTACHMENT 3: DOOR SCHEDULE

Refer to the attached SOW door schedule for full listing of fire, smoke, and auto doors covered under this contract. All listed doors and door systems are subject to inspection and service according to contract requirements.

D.4 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (FAR 52.222-42)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), the following identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332. This Statement is for Information Only: It is not a Wage Determination.

Employee Class	Monetary Wage-Fringe Benefits
[Employee class from WD 2015-5105 / WG-__]	[$__.__ per hour + __% fringe]

SECTION E - SOLICITATION PROVISIONS

ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

INSTRUCTIONS TO OFFERORS

1. General

(a) All times are Central Time. This RFQ uses FAR Part 12 and FAR Subpart 13.5 procedures. The Government intends to award without discussions, so the initial quote should contain the offeror's best terms. The Government may hold discussions if the Contracting Officer later decides they are necessary.

(b) This is a 100% small business set-aside. Offerors must be small under NAICS 541350 ($11.5 million) and have an active SAM registration when the quote is submitted.

2. Site Visit

A site visit will be held Thursday, October 15, 2026, at 9:00 AM CDT, meeting at the Engineering Service office (exact meeting location will be emailed to registered attendees), Dwight D. Eisenhower VAMC, 4101 S. 4th Street, Leavenworth, KS. Please email the Contracting Officer by Tuesday, October 13, 2026 with the names of attendees. Attendance is encouraged but not required.

3. Questions

Questions must be emailed to Michael Murphy at michael.murphy7@va.gov no later than Friday, October 16, 2026, 3:00 PM CDT, with the solicitation number in the subject line. Answers will be issued by amendment on SAM.gov Contract Opportunities. Telephone questions will not be accepted.

4. Submission

(a) Quotes are due Friday, October 23, 2026, 3:00 PM CDT, by email to michael.murphy7@va.gov. Subject line: "36C25526Q0617 Quote - Fire, Smoke and Automatic Door Services - [Company Name]." Files must be searchable PDF (the price schedule may also be sent in Excel) and no larger than 10 MB total per email. Offerors are responsible for confirming receipt.

(b) Submit the quote in two separate volumes, sent together: Volume I, Technical and Past Performance, and Volume II, Price. Volume I shall not contain any pricing.

5. Volume I - Technical Capability (no more than 10 pages, not counting certificates and the sample report)

(a) Approach. Describe how you will perform the fire/smoke door inspections and the automatic door inspections, maintenance and repairs in the SOW, including support for the mixed manufacturers in the Door Schedule and how you get OEM or equivalent parts.

(b) Personnel. Name the technicians who will do the work, where they are based, and their certifications. Include copies of current AAADM certificates and fire door inspector credentials.

(c) Response. Describe your 24/7 call process, where the technicians supporting Leavenworth are located, and how you will meet the response times in SOW para. 6.

(d) Healthcare experience and quality control. Describe how you work in occupied hospitals or similar facilities without disrupting patient care or egress, and your quality control process. Include one sample inspection report.

(e) Subcontracting. List every subcontractor you plan to use, its size status under NAICS 541350, the work it will do and its estimated share of the amount paid, and explain how you will meet FAR 52.219-14 (no more than 50% of the amount paid for services may go to firms that are not similarly situated small businesses).

6. Volume I - Past Performance

Provide up to three (3) contracts for the same or similar work performed in the last five (5) years: customer, contract number, location, period of performance, annual value, number and type of doors serviced, a short description of the work, and a current point of contact (phone and email). The Government may also use CPARS and other sources. Offerors with no relevant past performance will be rated neutral.

7. Volume II - Price

(a) Signed SF 1449 and acknowledgment of all amendments.

(b) The completed B.2 Price Schedule, with a unit price and amount for every CLIN in all five ordering periods. Do not change the Government estimate in CLIN X005. Quotes that leave out a CLIN may be found unacceptable.

(c) Confirmation that FAR 52.212-3 representations and certifications are current in SAM, and any representations required in Section E that are not collected in SAM.

(d) A statement that you accept all terms and conditions of this RFQ, or a list of any exceptions. Exceptions may make the quote unacceptable.

E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52 (FAR)
http://www.va.gov/oal/library/vaar/index.asp (VAAR)

(End of Provision)

FAR Number	Title	Date
52.212-1	INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (see Addendum)	SEP 2023 (DEVIATION OCT 2025)
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION	NOV 2024 (DEVIATION NOV 2025)
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION	JUN 2020 (DEVIATION SEP 2025)
852.215-72	NOTICE OF INTENT TO RE-SOLICIT	OCT 2019
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	SEP 2018
852.233-71	ALTERNATE PROTEST PROCEDURE	SEP 2018

E.2 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021) (DEVIATION OCT 2025)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Factor 1 - Technical Capability (approach, AAADM-certified and qualified personnel, response capability, healthcare experience and quality control)

Factor 2 - Past Performance

Factor 3 - Price

Factor 4 - Veterans Involvement (VAAR 852.215-70): SDVOSB and VOSB offerors verified in SBA VetCert, and offerors that commit to subcontract to them under 852.215-71, receive credit under this factor.

Technical Capability is more important than Past Performance, which is more important than Veterans Involvement. All non-price factors, when combined, are approximately equal to Price. A quote rated Unacceptable under Technical Capability is not eligible for award. The Government may award to other than the lowest-priced offeror if the non-price advantages are worth the price difference.

(b) Price evaluation. Total evaluated price is the sum, for all five ordering periods, of each unit price multiplied by the estimated quantity in the B.2 Price Schedule, plus the Government estimate for CLIN X005. The Government will also evaluate the option to extend services at FAR 52.217-8 by adding one-half of the offeror's Ordering Period V total. Evaluating this option does not obligate the Government to exercise it. Prices will be evaluated for reasonableness and balance; significantly unbalanced pricing between CLINs or ordering periods may make a quote unacceptable.

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

E.3 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (DEVIATION NOV 2025)

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures*.

(1) *Covered telecommunications and video surveillance*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders*.

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations*. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification*. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications*.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed

under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at *https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx*)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at *CISADA106@state.gov*.

(g) *Disclosure*.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at *https://dibnet.dod.mil*.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures*. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)

E.4 52.216-1 TYPE OF CONTRACT (APR 1984) (DEVIATION NOV 2025)

The Government contemplates award of a Firm-Fixed-Price, Indefinite Quantity contract resulting from this solicitation.

(End of Provision)

E.5 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024) (DEVIATION NOV 2025)

[Insert full text of 52.219-1 (FEB 2024) (DEVIATION NOV 2025) from eCMS. Paragraph (b) fill-ins: NAICS code 541350; small business size standard $11.5 million.]

(End of Provision)

E.6 52.233-2 SERVICE OF PROTEST (SEP 2006) (DEVIATION NOV 2025)

Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Hand-Carried Address:

Department of Veterans Affairs

Network Contracting Office (NCO) 15
3450 S 4th Street Trafficway

Leavenworth KS 66048
Mailing Address:

Department of Veterans Affairs

Network Contracting Office (NCO) 15
3450 S 4th Street Trafficway

Leavenworth KS 66048

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

E.7 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any VA Acquisition Regulation (48 CFR Chapter 8) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Provision)

E.8 852.252-70 SOLICITATION PROVISIONS OR CLAUSES INCORPORATED BY REFERENCE (JAN 2008)

The following provisions or clauses incorporated by reference in this solicitation must be completed by the offeror or prospective contractor and submitted with the quotation or offer. Copies of these provisions or clauses are available on the Internet at the Web sites provided in the provision at FAR 52.252-1, Solicitation Provisions Incorporated by Reference, or the clause at FAR 52.252-2, Clauses Incorporated by Reference. Copies may also be obtained from the contracting officer.

FAR 52.229-11, Tax on Certain Foreign Procurements—Notice and Representation

(End of Provision)

(End of Addendum to 52.212-1)